ROBINSONS LAND
CORPORATION

LEVEL 2 GALLERIA CORPORATE CENTER ROBINSONS GALLERIA, EDSA CORNER QUEZON CITY

October 17, 2024

Mr. Adrian Dimacali
Director
MARY GRACE FOODS, INC.
Mary Grace OTC (Indoor)
2985 Mahogany St., United Paranaque 2
Paranaque City

LEASE PROPOSAL

Dear Mr. Dimacali,

We are pleased to offer you a space at **Robinsons Place Antipolo Expansion.** Please find below the terms and conditions for the lease of the said space.

TRADENAME : Mary Grace OTC (Indoor)
NATURE/DESCRIPTION OF ESTABLISHMENT : Restaurants: Casual Dining
LOCATION : Lower Ground Mary Grace (OTC) Indoor

LEASE TERM
Commencement Date : Nov 01 2024 or first day of operation whichever comes first.
Termination Date : Dec 31 2027
Turnover Date : Oct 31 2024 subject to final confirmation from the Lessor

APPROXIMATE FLOOR AREA : 42.62 sqm

YEARLY RENT
PERCENTAGE (%) RENT Six Percent (6.00%) rent based on Actual sales or Minimum Monthly Gross Sales, whichever is higher.

Year	Start Date	End Date	Min. Rent (Php)*	Min. Monthly Gross Sales/sqm*
1	11/01/2024	12/07/2025	1,108.00	18,466.67
2	12/08/2025	12/07/2026	1,165.00	19,416.67
3	12/08/2026	12/31/2027	1,225.00	20,416.67

OTHER EXPENSES CHARGEABLE
Common Usage Expenses (CUSA) : Php 135.00 /sqm/mo*.
Security, Maintenance, Electricity, and all other Common Area Expenses

Airconditioning Charges : Php 125.00 /sqm/mo* .

Supply and installation of Fan Coil Units (FCU)/Aircon Units, Primary and Secondary Drain, line provisions, thermostat, piping works and accessories, Insulation, catwalk/maintenance platform, ductworks, and all accessories, Electrical power supply (AHU/PACU/Split type units) : Lessee's Account

Repairs and maintenance, replacement, and cleaning of AC System : Lessee's Account

Should tenant opt to use Lessor's existing A/C equipment in the leased premises, all replacements, repairs and maintenance shall be for the account of the Lessee.

22.04.25

LP#179884

4/23/25

Pest Control, cashier's salary, advertising and promotional expenses and other individual services/utilities	:	at reasonable rates/amount to be determined by the LESSOR*
Advertising and Promotional Expenses/Marketing Support Fund	:	Php 0.00 /year*

* Subject to VAT

- All amounts herein stipulated may be subject to increase whenever the cost of any of the electricity, labor, water or common area and aircon-related expenses increase.
- The discounted monthly rate shall be the basis if the rent **is paid within the first 7th calendar days of the month** to which the rent corresponds. All amounts herein stated are exclusive of **Value Added Tax (VAT), Documents Stamps Tax and other taxes** which shall be for the account of the Lessee.
- Should Lessee decide to extend its operation beyond the regular mall operating hours, Lessee will be charged subsequent aircon / CUSA and other utility charges at a rate to be determined by the LESSOR. Lessee will have to secure the formal consent of the Lessor for its extension of operating hours.
- Should Lessee decide to install additional Fan Coil Units (FCU) in their area, an additional charge of Php2,400.00 ton/month (subject to increase) shall be billed to cover for the chilled water to be provided to the Lessee.

Repairs & Maintenance of Leased Premises, Equipment, Furniture	:	Lessee's Account
Expense for Individual Utilities	:	Lessee's Account
PC-POS	:	Lessee's Account
PC-POS Connection Fee	:	Php 0.00 * For Lessee's Account *subject to change
SECURITY DEPOSIT	:	Two hundred eighty-three thousand three hundred thirty-eight Pesos (Php 283,338.00)

The Security deposit shall be forfeited in our favor upon a) cancellation of our agreement after you have signed and confirmed this Lease Proposal; b) failure to occupy the leased premises within 30 days from effectivity of the lease; c) termination of the contract for whatever reason prior to expiry date of the term or d) failure to commence store construction as stipulated cancellation clause.

It shall be understood that the security deposit shall only be refunded without interest after the expiration of the term of this lease and after you have satisfactorily vacated and completely delivered the leased premises to us, less whatever amounts you may owe us which may be applied against the security deposit.

INSURANCE : **CONTRACTOR'S ALL RISK INSURANCE**

Payable to Prudential Guarantee & Assurance Corp. or any RLC accredited bonding companies. Contractor's All Risk Insurance for bodily injury and property damage to third party for the duration of the construction required.

CONSTRUCTION DEPOSIT : **LESSEE'S ACCOUNT - Php 0.00**

1. Construction/Renovation Deposit - Php 0.00

- If there is an existing meter, actual power & water consumption charges
- If there is no existing meter, theoretical charges only
- Housekeeping services - cleaning of common area affected by the construction Plywood fencing - existing storefront (if applicable)
- Uncertified construction violation penalty (if applicable)
- Other construction damages that may occur (if applicable)
- Security Guard on Post Fee - Rate to be determined by Mall Operation. Applicable for renovation /construction works that would be rendered after mall hours.

2. Power/Water Meter Deposit - Php 0.00

- Actual amount may vary depending on the type of the meter to be installed. Excess payments to be refunded upon completion of tenant pre-operational checklist clearance. Meter deposit withheld refundable upon termination of Contract of Lease

3. Performance Cash Bond - Php 0.00

- Refundable upon faithful compliance of all pre-operating requirements.

Note:
A temporary clearance to operate may be given to tenants with minor unrectified construction violations. However, if violation/s are not rectified thirty (30) days after the date of issuance of temporary clearance, RLC will take over and rectify the violations and the rectification cost shall be deducted from the Performance Bond.

Other details:
Construction deposit and other related items for refund will be processed by Corp. Property Planning Dept. (CPPD) ONLY after fully accomplishing the Tenant Pre-Operational Checklist (TPOC) in coordination with the Mall Architect in-charge.
Net amount of all the charges shall be refunded by check or application to future charges in the name of the TENANT as indicated in the RLC Contract of Lease ONLY.

INTEREST/PENALTIES ON LATE PAYMENT:
All unpaid charges except space rental after due date shall be subject to an interest rate of three percent (3%) per month. The space rental shall also be subject of the same interest rate if it remains to be unpaid after the calendar month the rent pertains to. In addition, the LESSOR, at its opinion, may impose penalty of five percent (5%) per month, on all unpaid charges including interests for accounts over 60 days past due until full payment date.

CANCELLATION:
Should you fail to commence operation within thirty **(30) days** from effectivity of the lease, we shall have the right to unilaterally cancel this agreement and all deposits received by us will **not** be refunded. We therefore reserve the right to offer the same premises to a third party.

LEASE CONTRACT
This Lease Proposal, together with the attached General Terms and Conditions (Annex "A" hereof), embodies all the terms and conditions agreed upon by the parties and shall be binding upon them. In case of conflict, this Lease Proposal shall prevail. The LESSEE or his/her representatives certify that they have read this or caused to be read to him/her, inclusive of its Annexes, and that he/she has fully understood the same.

Please be advised that we are also entertaining other parties to the space and eventual awarding of the space will be on a **first confirmed - first reserve basis** upon receipt of signed Lease Proposal and payment of Security Deposit.

Should our proposal be acceptable to you, kindly indicate your conformity by affixing your signature on the space provided below and return all copies of the same to us on or before October 22, 2024.

Very truly yours,

Hannah E. Narte
Lease Manager

CONFORME:
MARY GRACE FOODS, INC.

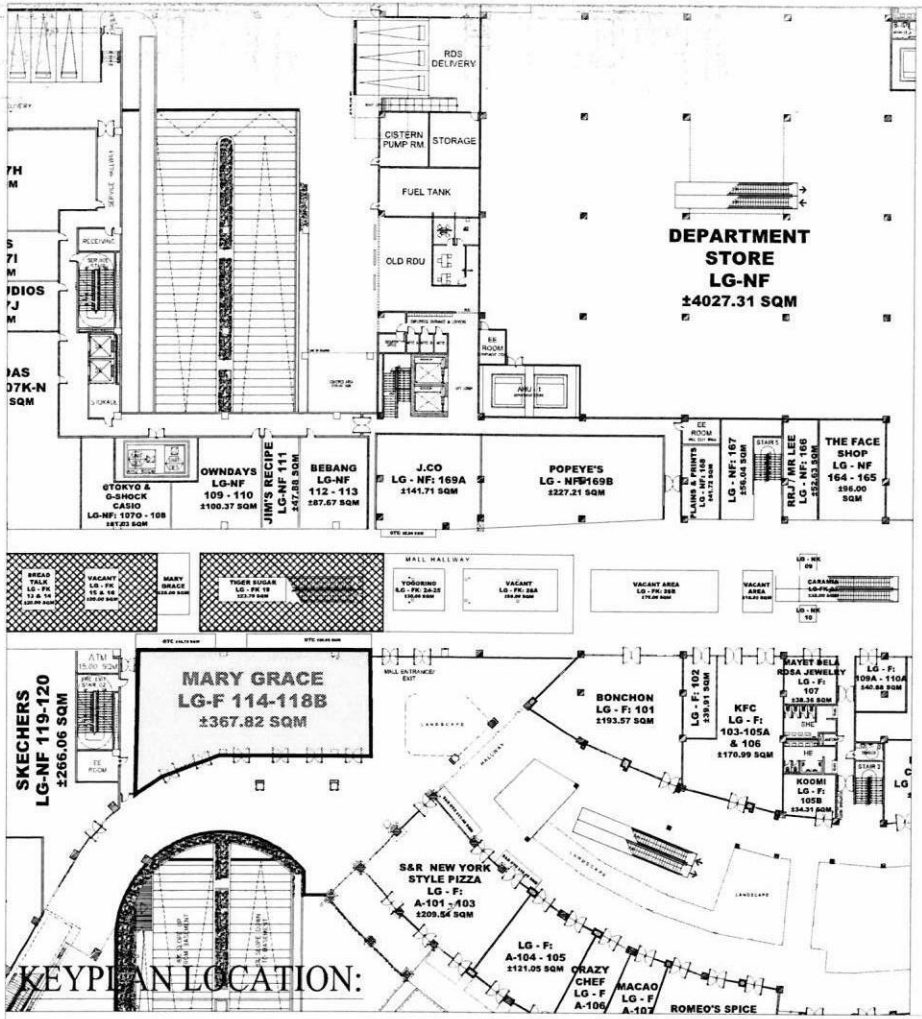
By: _____
Mr. Adrian Dimacali
Director

Noted By:

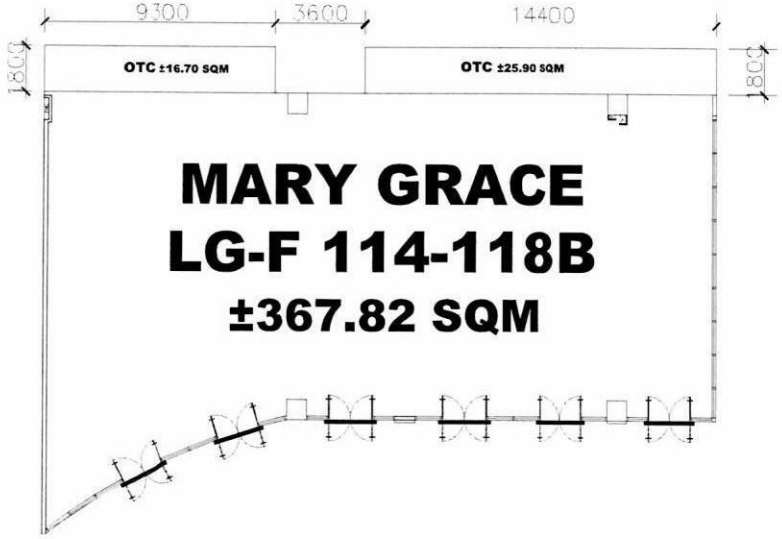
Ma. Imelda M. Bojos
Sr. Lease Manager

Joretta Pimentel - Jardeleza

Rachelle Jean Tinamisan-Wu



KEYPLAN LOCATION:



BLOW-UP PLAN:

NOTES:

1. THIS BLOW-UP PLAN IS BASED ON ACTUAL MEASUREMENTS, ISSUED BY THE MALL DESIGN AND PLANNING MANAGER
2. UNITS ON THIS BLOW-UP PLAN ARE IN MILIMETERS

ROBINSONS LAND CORPORATION
COMMERCIAL CENTERS DIVISION
CORPORATE PROPERTY PLANNING DEPARTMENT

ROBINSONS PLACE ANTIPOLO
Brgy. Dela Paz, Antipolo City, Rizal
Telephone No.: +63-2-397-1888

ROBINSONS ANTIPOLO

PREPARED BY:
AR. CHRIS ANTONIO ONGSIAKO
MALL DESIGN AND PLANNING MANAGER

SIGNATURE & DATE:
MS. HANNAH E. NARTE
LEASE MANAGER

SIGNATURE & DATE:
Date: July 27, 2023
TENANT REPRESENTATIVE

Tenant Name: MARY GRACE OTC
Location: LOWERGROUND
Area: 16.70 + 25.90 SQ. M.
Scale: NTS
Date: July 27, 2023